CHIEF JUSTICE ROBERTS delivered the opinion of the Court.

Last August, for the first time in the Federal Reserve's 111-year history, the President attempted to fire one of its Governors. A few weeks later, a federal court issued an injunction to prevent him from doing so. We decide whether that order should remain in effect pending the conclusion of litigation over the attempted removal.

I

A

Our Nation's first *de facto* central bank predates even our Constitution. Through the early years of the Revolutionary War, the Continental Congress had been forced to print so much money to finance the war that its currency had become all but worthless. See G. Wood, The American Revolution 145–147 (2002). ("Not worth a Continental," as the saying goes.) "Duty . . . compells me," General Washington wrote

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as follows: *Steve Marshall* of Alabama, *Stephen J. Cox* of Alaska, *Tim Griffin* of Arkansas, *Christopher M. Carr* of Georgia, *Raúl R. Labrador* of Idaho, *Theodore E. Rokita* of Indiana, *Brenna Bird* of Iowa, *Kris Kobach* of Kansas, *Russell Coleman* of Kentucky, *Liz Murrill* of Louisiana, *Lynn Fitch* of Mississippi, *Andrew Bailey* of Missouri, *Austin Knudsen* of Montana, *Michael T. Hilgers* of Nebraska, *Drew H. Wrigley* of North Dakota, *Gentner Drummond* of Oklahoma, *Alan Wilson* of South Carolina, *Marty Jackley* of South Dakota, *Jonathan Skrmetti* of Tennessee, *Ken Paxton* of Texas, and *John McCuskey* of West Virginia; for the America First Legal Foundation by *R. Trent McCotter* and *Gene Hamilton*; for the America First Policy Institute by *Brian Kelsey*; for Azoria Capital, Inc., et al. by *Jessica Furst Johnson*; and for the New Civil Liberties Alliance by *Jacob Huebert* and *Mark Chenoweth*; and for the Separation of Powers Clinic by *R. Trent McCotter*.

Briefs of *amici curiae* were filed for the American Civil Liberties Union et al. by *Aditi Shah*, *Scott Michelman*, *John W. Whitehead*, *Cecillia D. Wang*, *Evelyn Danforth-Scott*, and *Sophia Lin Lakin*; for the Chamber of Commerce of the United States of America by *Steven A. Engel*, *Michael H. McGinley*, *Brian A. Kulp*, *Daryl L. Joseffer*, and *Christopher J. Walker*; and for Aaron L. Nielson, *pro se*.

to Congress in 1780, to request some solution to "the great depreciation of the Money," for fear of "mutiny" in the ranks. Letter from G. Washington to S. Huntington (May 27–28, 1780), in 26 Papers of George Washington 202–206 (B. Huggins & A. Garbooshian-Huggins eds. 2018). To solve the problem, Congress realized, it would have to tie its own hands—to place the power to create money elsewhere, in an entity that could credibly serve as "a principal Pillar of American Credit . . . by the ties of private interest." Letter from R. Morris to B. Franklin (July 13, 1781), in 35 Papers of Benjamin Franklin 262–266 (B. Oberg ed. 1999).

Thus was born the Bank of North America. Its structure was unusual. It was to be owned in part by the Government (at least at first) and in part by the public, run by directors accountable only to private stockholders and yet tasked with public purposes—specifically, the maintenance of a sound national currency. See 20 Journals of the Continental Congress, 1774–1789, pp. 545–546 (G. Hunt ed. 1912); 21 *id.*, at 1185–1190; see also E. Kaplan, The Bank of the United States and the American Economy 10–14 (1999). But it worked. See R. Wright & D. Cowen, Financial Founding Fathers 127–131 (2006) (Wright & Cowen). Such a bank was a "necessity," Thomas Paine later wrote, "for what with the depreciation of the currency, the slow operation of taxes, and the petitions to be exempt therefrom, the treasury was moneyless, and the government creditless." Dissertations on Government, the Affairs of the Bank, and Paper Money 21–22 (1786). Alexander Hamilton said the same. "The aid afforded to the United States, by this institution, during the remaining period of the war," he wrote, "was of essential consequence." Report on a National Bank (Dec. 13, 1790), in 7 Papers of Alexander Hamilton 305, 323 (H. Syrett & J. Cooke eds. 1963) (Report on a National Bank). But the bank was short lived as a solely national institution—it accepted state charters in 1782, and its national charter lapsed alongside the Articles of Confederation in 1789. See 1 J.

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Markham, A Financial History of the United States 71–72 (2002) (Markham).

Another national bank, however, quickly followed in its footsteps. In 1791, at Hamilton's urging, the First Congress chartered a bank that came to be known as the First Bank of the United States, with similar goals to the Bank of North America—and a similar degree of independence from the Congress that gave it life. Like the Bank of North America, the First Bank would be owned in part by the Federal Government, but run by directors accountable only to private stockholders. See Act of Feb. 25, 1791, § 4, 1 Stat. 192–193; see also Wright & Cowen 10–13; E. Perkins, American Public Finance and Financial Services, 1700–1815, p. 236 (1994); E. Lomazoff, Reconstructing the National Bank Controversy 33–38 (2018) (Lomazoff). To Hamilton, that was key. "To attach full confidence to an institution of this nature," he wrote, "it appears to be an essential ingredient in its structure, that it shall be under a *private* not a *public* Direction," one that could resist "the temptations of momentary exigencies." Report on a National Bank 331. Under a public direction, Hamilton feared, "suspicion" of political manipulation "would continually corrode the vitals of the credit of the Bank, and would be most likely to prove fatal in those situations, in which the public good would require, that they should be most sound and vigorous." *Ibid.*

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Although the charter for the First Bank was allowed to expire in 1811, it took only five years for Congress to reverse course. As Chief Justice Marshall remarked in our Court's first major decision on the breadth of the Federal Government's enumerated powers, "a short experience of the embarrassments to which the refusal to revive [the First Bank] exposed the government"—severe financial instability following the War of 1812—"convinced those who were most prejudiced against the measure of its necessity." *McCulloch* v. *Maryland*, 4 Wheat. 316, 402 (1819). That necessity led to the Second Bank of the United States—encouraged

even by President Madison, previously an ardent foe. See J. Madison, Seventh Annual Message (Dec. 5, 1815), in 1 Compilation of the Messages and Papers of the Presidents, 1789–1897, pp. 562, 564–566 (J. Richardson ed. 1897) (Compilation). Like its predecessors, the Second Bank was not to be controlled by the Federal Government that brought it into existence. Of its 25 directors, only five were appointed (and removable) by the President. The remaining 20 were appointed by and accountable only to private stockholders. See Act of Apr. 10, 1816, § 8, 3 Stat. 269–270.

The Second Bank's independence, however, was to prove its downfall. Unlike James Madison, Andrew Jackson had not and would not change his mind on the wisdom of a national bank, at least one he could not control. He savaged the Second Bank as a "[h]ydra of corruption" only he could slay. Letter from A. Jackson to J. Hamilton (June 3, 1830), in 8 Papers of Andrew Jackson 343 (D. Feller, T. Coens, & L. Moss eds. 2010).[1] So in 1832, when Congress passed a bill to extend the Second Bank's charter, it met with Jackson's veto and his famous veto message. He refused "to make the rich richer and the potent more powerful" at the expense of "the humble members of society—the farmers, mechanics, and laborers." Veto Message (July 10, 1832), in 2 Compilation 590. As Tocqueville observed, "the common people" rallied "round the President," Jackson easily won reelection, and that was the end of the Second Bank. 1 A. de Tocqueville, Democracy in America 178 (H. Reeve transl. 1889).

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[1] J. Hamilton (James) was in fact Alexander's fourth child. He was an avid supporter of and advisor to Jackson (and later Lincoln), and an accomplished yachtsman, a last-minute addition to the crew that won the first America's Cup. See J. Hamilton, Reminiscences of James A. Hamilton 76–77, 400–403, 529–536 (1869). The wayward son would come to rue Jackson's decision "to destroy the Bank of the United States," which (he argued) led to "a most disastrous inflation of the currency, reckless speculation, and the extended ruin of 1837." *Id.*, at 279–280.

It would take almost 80 years before Congress would try again, and only after an era of ruinous financial panics—the ones of 1837, 1857, 1873, 1893, and 1907. These crises were in no small part attributable to Jackson's crusade. See R. Lowenstein, America's Bank 11–28, 59–76 (2015). Without an independent central bank, there was no way to contain the damage whenever a major institution fell—no lender of last resort that could allow sound banks with good but temporarily illiquid assets to access cash, no elastic currency that could expand to meet demand, and no mechanism to ensure that small banks issued loans only within their means in the first place. See 1 Markham 168–180, 330–333, 380. It was a system "devised for fair weather, not for storms," said President McKinley's Secretary of the Treasury. Dept. of Treasury, L. Gage, Ann. Rep. of the Secretary of the Treasury 73 (Doc. No. 2238, 1901). It took the Panic of 1907 to force action. A failed attempt by speculators to corner the copper market led to the quick collapse of two banks, and the contagion spread from there, ultimately toppling some 2,000 firms and 130 banks. See 2 Markham 29–41. A bipartisan congressional commission eventually recommended the creation of a central bank to assume "the serious duty of protecting public and private interests at times when they are imperiled." Report of the National Monetary Commission, S. Doc. No. 243, 62d Cong., 2d Sess., 36 (1912).

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What emerged from these debates is today's central bank—called the Federal Reserve System—first created in 1913, and then restructured in 1933 and 1935. "[M]odelled upon our federal political system," the Federal Reserve consists of two layers. C. Glass, An Adventure in Constructive Finance 173 (1927) (Glass). At its base sit 12 "independent but affiliated banks," one for each region, with "their own responsibility in local affairs." *Ibid.* These regional banks, called Federal Reserve Banks, are privately owned (and operated) by the commercial banks of the area. See 38 Stat. 254, 12 U. S. C. § 341. Above those banks are two national

bodies, the Federal Open Market Committee and the Board of Governors. The former sets monetary policy nationwide. See § 263. And the latter supervises the system "from the national point of view," Glass 173–174, with an eye to the economy's "long run growth," § 225a. It consists of seven members, appointed by the President and confirmed by the Senate. § 241. Like the directors of its three predecessors, however, the Federal Reserve's Governors do not serve at the President's pleasure—they instead serve staggered 14-year terms, and may be removed only "for cause." § 242.

B

Lisa Cook was appointed to the Board of Governors in 2022, at first to complete only the final two years of Janet Yellen's unexpired term. A year later, however, President Biden nominated Cook to a full 14-year term, and the Senate again voted to confirm her. In the normal course, then, Cook's term on the Federal Reserve was set to expire in 2038.

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Over the course of one week in August 2025, however, the longevity of Cook's tenure was to be called into question. On August 20, the Federal Housing Finance Agency's Director, William Pulte, posted to social media a letter dated a week before. The letter was addressed to Attorney General Pamela Bondi, and it accused Cook of mortgage fraud. "According to mortgage documents obtained by" the Agency, it stated, "it appears" that Cook "falsified bank documents and property records to acquire more favorable loan terms" in 2021, by claiming two homes simultaneously as her principal residence. Attachment to Complaint in No. 1:25–cv–02903 (D DC), ECF Doc. 1–2, p. 2. Less than 30 minutes later, President Trump posted to social media that "Cook must resign, now!!!" and linked to a news article about Pulte's letter. ECF Doc. 1, p. 14. Two days later, the President told reporters that "[w]hat [Cook] did was bad" and that he would "fire her if she doesn't resign." *Ibid.*

Three days after that, President Trump purported to fire Cook for cause. In a letter to Cook, he stated that he had "reason to believe" that she "may have made false statements on one or more mortgage agreements." ECF Doc. 1–4, p. 2. "The American people must be able to have full confidence in the honesty of the members entrusted with setting policy and overseeing the Federal Reserve," he explained. *Ibid.* But he lacked "such confidence in [Cook's] integrity," he continued, "[i]n light of [her] deceitful and potentially criminal conduct," which "[a]t a minimum" exhibited "gross negligence." *Ibid.* He thus determined that "faithfully executing the law requires [Cook's] immediate removal from office." *Id.*, at 3.

Cook promptly filed suit, seeking relief at law and at equity to allow her to stay in office. She alleged that the removal was not "for cause," as required by statute. And in any case, she alleged, the President had failed to comply with the statute's (and the Constitution's) requirement that she receive notice and some opportunity to respond to the charges against her before being fired.

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The District Court agreed, issuing a preliminary injunction to prevent her removal. It noted first that the scope of the dispute was narrowed by the Government's concession (for purposes of this proceeding) that the statute itself is constitutional. It then turned to Cook's two claims, both of which it considered likely to succeed. As to the first, it held that the President had failed to state "a legally permissible cause," because "cause" refers only to "an official's *in-office* conduct or performance"—a standard that could not be met here, given that the mortgages at issue predated Cook's tenure at the Federal Reserve. 804 F. Supp. 3d 14, 26, 32 (DC 2025). And as to the second, it held that the Constitution entitled Cook "to notice and a hearing before her termination"—process she had not received. *Id.*, at 33. The District Court finally concluded that Cook faced irreparable harm without injunctive relief, and that the final two fac-

tors—the balance of equities and the public interest—"strongly cut" in her favor. *Id.*, at 43.

The Court of Appeals declined to stay the injunction. Judge Garcia, joined by Judge Childs, filed a concurrence focused solely on Cook's due process claim. As a public official who may be removed only "for cause," he contended, Cook has a property interest in her position, and may not be removed summarily. 2025 WL 2654786, *1 (CADC, Sept. 15, 2025). Judge Katsas dissented. He would have rejected Cook's due process claim on the basis that a public official, unlike an employee, can have no property right in her position. And he would have held that a termination "for cause" merely requires some reference to a person's "conduct, ability, fitness, or competence"—a requirement that the President "plainly" met here. *Id.*, at *7.

The Government applied for a stay in this Court. We deferred the application pending oral argument. 606 U. S. 1062 (2025).

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II

This case comes to us not directly on the merits but on the Government's application for a stay—an order preventing the District Court's ruling from going into effect pending appeal to the Court of Appeals and, if necessary, to this Court. The standards for such relief are well established: The applicant must show that it is likely to succeed on the merits of its appeal, that we would likely grant certiorari to review any decision to the contrary, that it will likely suffer irreparable harm in the interim, and that the balance of equities tip in its favor. See *Hollingsworth* v. *Perry*, 558 U. S. 183, 190 (2010) (*per curiam*); *Nken* v. *Holder*, 556 U. S. 418, 434 (2009).

We start and stop with the first factor. In our view, the Government has not shown that it is likely to prevail on the various legal arguments advanced in its stay application. The Government raises three alternative arguments: that a removal for cause under the statute is not judicially review-

able; that even if the removal is reviewable, cause is a low bar satisfied by any concerns about a Governor's conduct, ability, fitness, or competence; and that even if the Government did not show cause to remove Cook, she is nevertheless not entitled to remain in office while litigation over the removal is pending. We disagree on all three points. To accept any one of those arguments would in effect transform the Federal Reserve's for-cause protection into at-will employment—an interpretive leap out of step with the statute Congress enacted and our Nation's tradition of central banking protected from political interference. We therefore deny the Government's application.

A

The Government (but not JUSTICE THOMAS) contends that the President's determination of "cause" is wholly unreviewable. "The statutory 'for cause' language at issue," the Government argues, "commits the determination of cause to" the President alone. Application 20.

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We see no such textual commitment. The statute provides that each member of the Board of Governors "shall hold office for a term of fourteen years . . . , unless sooner removed for cause by the President." 12 U. S. C. §242. Whether a Governor should be removed, it is true, is a decision only the President can make (short of impeachment). But that does not mean that he may make that decision for any reason, or no reason. Even when a statute "delegates discretionary authority" to the Executive Branch, we have explained, our role "is, as always, to independently interpret the statute and effectuate the will of Congress subject to constitutional limits." *Loper Bright Enterprises* v. *Raimondo*, 603 U. S. 369, 395 (2024). Congress could of course afford the President the power to remove Federal Reserve Governors at will. Or Congress could exempt the President's removal of Governors for cause from judicial review. But Congress has done neither.

The Government appears to concede that at least some judicial review of a removal is available. It admits that "federal courts may review the removal of a Federal Reserve Board member when, for instance, the President identifies no cause at all." Application 20. But the only way for us to tell whether the President has identified cause *under the statute* is to interpret the statute, and decipher what precisely it means by "cause." As the Government acknowledges in its supplemental brief, it is the task of a "[r]eviewing court[ ]" to "discern the boundaries of the President's power" under the Federal Reserve Act. Supp. Brief for Applicant 13 (internal quotation marks omitted).

The Government relies on *Reagan* v. *United States*, 182 U. S. 419 (1901), but that case offers it no help. In *Reagan*, as the Government explains, we said that the removal at issue was "a matter of discretion and not reviewable," *id.*, at 425—but not because all removals are. Just the reverse. The statute at issue in *Reagan* limited removal for certain court officers to "causes *prescribed by law.*" *Ibid.* (emphasis added). The trouble was that no "causes for removal . . . were ever affirmatively specified by Congress." *Ibid.* The plaintiff thus argued that he was entitled to "hold office during life," or at least until "Congress passes a law defining such causes." *Ibid.* We rejected his argument. We said that we could not review the removal because no enumerated causes were "defined" by law "*nor removal for cause provided for*" by the statute. *Ibid.* (emphasis added). The statute at issue here, by contrast, provides just that. See 12 U. S. C. § 242 (removal may be made only "for cause").

With no support in *Reagan*, the Government turns to the common law, which (it says) forecloses all judicial review. The common law, however, appears to cut the other way. See *State ex rel. Hart* v. *Common Council of City of Duluth*, 53 Minn. 238, 244, 55 N. W. 118, 120 (1893) ("The sufficiency and reasonableness of the cause of removal are questions for the courts. . . . This has been the settled law ever since

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Bagg's Case, [11 Co. Rep. 93b, 77 Eng. Rep. 1271 (K. B. 1615) (Coke, C. J.)], and we are not aware of any respectable authority to the contrary."). The Government's four cited cases do not persuade us otherwise. The first two expressly declined to resolve the issue. See *United States ex rel. Garland* v. *Oliver*, 6 Mackey 47, 56 (D. C. 1887) (issue "not argued"); *The Mayor and Council of the City of Hoboken* v. *Gear*, 3 Dutch. 265, 287 (NJ 1859) (*seriatim* opinion of Vredenburgh, J.) ("not a question upon review"). And the last two addressed statutes that specified not only *causes* for removal but also *procedures* for removal, which the court interpreted to be exclusive. See *Trimble* v. *People ex rel. Phelps*, 19 Colo. 187, 197, 34 P. 981, 985 (1893) (interpreting "the lawmaking body" to have been "of the opinion" that no other "check" was "necessary to prevent an arbitrary and oppressive abuse of the power" of removal); *People ex rel. Platt* v. *Stout*, 19 How. Pr. 171, 173, 181 (NY Sup. Ct. 1860) (*seriatim* opinion of Sutherland, J.) (interpreting "the legislature" to have "intended by the act to give, so far as it regards the sufficiency . . . of the cause, the whole discretionary power to the mayor and [the] board of aldermen," which must "consent" to the mayor's decision for the removal to be effective). We see no indication in the common law that the President should have a free hand.

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B

Even if the President's determination is judicially reviewable, the Government (and JUSTICE THOMAS) contend, "cause" sets a very low bar—one that the President easily cleared. In the Government's view, "cause" includes any concern the President may have about a person's "conduct, ability, fitness, or competence." Application 25–26 (quoting Black's Law Dictionary 508 (2d ed. 1910)); see also *post*, at 578 (THOMAS, J., dissenting). That excludes a "mere policy disagreement," according to the Government, but it includes (among many other things) "concerns" about a per-

son's "integrity"—precisely the cause given here. Application 26, 31.

Cook, on the other hand, argues that "cause" sets a very high bar—one that the President failed to meet. In her view, Congress used "for cause" merely as a shorthand to refer to "the existing causes for presidential removal of executive officers" as defined by various other statutes. Brief in Opposition 20. And at the time of this statute's reenactment in 1935, she explains, those causes were few—either poor performance in office ("inefficiency," "neglect of duty," or "malfeasance") or "ineligibility" for office in the first place. *Id.*, at 21–23 (internal quotation marks omitted). But, she argues, the President alleged neither. Her "private, pre-office conduct," she concludes, can offer no cause at all. *Id.*, at 22–23.

We find neither explanation persuasive. Although neither the Government nor JUSTICE THOMAS say as much, both seem to acknowledge that Congress enacted this statute "against the backdrop of the common law," *Comcast Corp.* v. *National Assn. of African American-Owned Media*, 589 U. S. 327, 335 (2020), such that we must look to the common law to decipher what "cause" (a term of art) requires. See *Jam* v. *International Finance Corp.*, 586 U. S. 199, 211 (2019) ("[W]e ordinarily presume that Congress intends to incorporate the well-settled meaning of the common-law terms it uses . . . ." (internal quotation marks omitted)). Indeed, the one authority upon which the Government relies for its definition of "cause," the second edition of Black's Law Dictionary, itself defined "cause" based on two cases—each of which sought (in the common-law tradition) to distill "cause" from general principles, customs, and judicial decisions across all States. See *Board of Street Comm'rs of Hagerstown* v. *Williams*, 96 Md. 232, 236–239, 53 A. 923, 924–925 (1903) (discussing decisions from Maine, Missouri, Ohio, and Pennsylvania, as well as various treatises); *In re Nichols*, 6 Abb. N. Cas. 474, 479–495 (NY Sup. Ct. 1879) (discuss-

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ing decisions from Indiana, Massachusetts, Michigan, and Ohio, as well as various treatises). Neither one of those cases, however, nor Black's itself, suggested that *any* reason would do. Contra, *post*, at 578 (THOMAS, J., dissenting). They instead emphasized that the cause identified must be "substantial, reasonable and just," *Nichols*, 6 Abb. N. Cas., at 480 (internal quotation marks omitted), a "disqualification" akin to "inefficiency" or "incompetency," *Board of Street Comm'rs*, 96 Md., at 239, 53 A., at 925.

If the Government's (and JUSTICE THOMAS's) test is too lenient, however, Cook's is too stringent. Cook argues that we should interpret "cause" to refer only to the *specific* causes provided in *other* statutes as bases "for presidential removal"—specifically, as of 1935, inefficiency, neglect of duty, malfeasance, and ineligibility. Brief in Opposition 20. But we see no reason why that should be so. It is true, of course, that some statutes by their terms incorporate an "external body of law," as when a statute refers generally to defenses "available by law." *Jam*, 586 U. S., at 210 (emphasis deleted; internal quotation marks omitted). That inference, however, works only if the statute actually *references* that body of law. The statute here does not. It refers to "cause" generally, 12 U. S. C. § 242, a concept familiar to the common law. It does not refer to "causes that Congress has otherwise recognized as adequate."

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Having rejected both parties' positions, we need not fully demarcate the contours of "cause" today. For present purposes, it is sufficient to observe that any definition of "cause" in this context must reflect the Federal Reserve's unique historical status and role. See *supra*, at 534–539; cf., *e. g.*, *Board of Street Comm'rs*, 96 Md., at 237–238, 53 A., at 924 (focusing upon "the nature of the service to be performed" and "the duties of the office"); *Hart*, 53 Minn., at 244, 55 N. W., at 120 (similarly focusing upon "the character of the office" and "the qualifications necessary to fill it"). Like its predecessors, the Federal Reserve operates at a deliberate remove from the ordinary political process. It sets its own budget, free

of congressional control. §243. It consists in large part of privately owned (and operated) entities, namely, the regional banks. §222. And its policies are set not only by Governors, but also by representatives of the private regional banks. §263. Indeed, it is the Federal Reserve's independence that allows it to pursue its mandate of "maximum employment, stable prices, and moderate long-term interest rates," §225a, goals that may be thwarted if (to quote Hamilton) "suspicion" arose that its operations were "at the disposal of the Government," which often may favor ephemeral short-term gains over long-term growth, Report on a National Bank 331. Not only the *fact* of independence but also the *appearance* of independence is key to the Federal Reserve's design.

That counsels a substantial threshold for "cause." It is true, of course, that "cause" cannot be reduced to a precise set of rules, and some close calls are inevitable. Whether "cause" for removal exists in any given situation will depend, at least in part, on the seriousness of the alleged misconduct, and the extent of any nexus that may exist to the Governor's professional duties. The key issue is whether "[t]he cause assigned" truly "impl[ies] an unfitness for the place"—or whether it simply represents an effort to secure a "more congenial" replacement. *In re Nichols*, 6 Abb. N. Cas., at 482. "Our review is deferential, but we are not required to exhibit a naiveté from which ordinary citizens are free." *Department of Commerce* v. *New York*, 588 U. S. 752, 785 (2019) (internal quotation marks omitted). Without such constraints in place, any perceived or alleged misstep (past or present) could provide a ready pretext for a Governor's removal—a fact that he would surely know, and that would surely weigh on him as he decided what to say and how to vote. Nothing could be more corrosive of the independence that Congress sought to preserve.

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C

Even if the determination of cause is judicially reviewable and the definition of cause imposes a substantial threshold,

the Government (joined by JUSTICE THOMAS) contends that federal courts cannot grant a preliminary injunction ordering reinstatement during the pendency of litigation. On their view, all that a court may do is wait, and perhaps award backpay later—even if the President fires a member of the Board for an absurd reason, or no reason, and even if the court holds that he broke the law in doing so. See Application 31–32; *post*, at 593–594 (THOMAS, J., dissenting).

The law does not require such a result. The very treatise upon which the Government and JUSTICE THOMAS rely, in fact, rebuts their argument. At least as a historical matter, as the Government and JUSTICE THOMAS explain, courts of equity would "not interfere by injunction to determine questions concerning the appointment of public officers or their title to office." Application 33 (quoting 2 J. High, Law of Injunctions § 1312, p. 863 (2d ed. 1880) (High)); *post*, at 593 (THOMAS, J., dissenting) (same). But such courts "frequently recognize[d] and protect[ed] the possession of officers *de facto*, . . . pending a litigation" at law "to determine their title." 2 High § 1315, at 866. Put another way, a court of equity would not and could not finally determine whether a plaintiff was validly removed—that was a question only a court of law could settle (again, historically) by *quo warranto* or mandamus. See S. Bray, Remedies in the Officer Removal Cases, 17 J. Legal Analysis 236, 241–246 (2025) (Bray). In the meantime, however, equity could ensure that "the actual incumbents of an office may be protected, pending a contest as to their title, from interference with their possession, and with the exercise of their functions," at least to the extent that they had a likely meritorious claim. 2 High § 1315, at 866; see also, *e. g.*, 1 J. Pomeroy, Equitable Remedies § 335, pp. 591–593 (1905). The District Court sought to do just that here. See App. to Application 23a. No equitable bar stood in its way.

Neither *In re Sawyer*, 124 U. S. 200 (1888), nor *White* v. *Berry*, 171 U. S. 366 (1898), says otherwise. Both cases

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stand for the far more limited proposition, already discussed, that "a court of equity has no jurisdiction over the appointment and removal of public officers," for such jurisdiction "belongs exclusively to the courts of law." *Sawyer*, 124 U. S., at 212; *White*, 171 U. S., at 376–377. Neither case holds that equity is unavailable in the interim. As Professor Bray has explained, *Sawyer* and *White* reflect "equity's overriding concern about the adequacy of legal remedies." Bray 246. Because the plaintiffs in those cases had "effective legal remedies" (like mandamus and *quo warranto*) to finally settle title to their offices—the only relief they sought—"equity could not intervene." *Ibid.* But that was not to preclude equitable remedies for *de facto* officers, like Cook, who required immediate relief "to protect [their status] during the course of th[e] litigation" at law. *Ibid.*

In sum, a court may order that a removed Governor remain in office during the pendency of litigation if the Governor is otherwise entitled to a preliminary injunction. Otherwise, a President could remove a Governor even while litigation over the removal was ongoing—and could do so for very lengthy periods of time without substantial cause for removal. That would significantly interfere with the independence of the Federal Reserve.[2]

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[2] As a final procedural roadblock, JUSTICE THOMAS contends that Cook may not herself "enforce the terms of the Federal Reserve Act," for "[n]o plaintiff . . . can sue without a right of action" that "come[s] from Congress." *Post*, at 591. That is mistaken. We have often held that plaintiffs may sue "in equity" without a congressionally-provided cause of action "'to prevent an injurious act by a public officer.'" *Armstrong* v. *Exceptional Child Center, Inc.*, 575 U. S. 320, 327 (2015) (quoting *Carroll* v. *Safford*, 3 How. 441, 463 (1845)); see also W. Baude, J. Goldsmith, J. Manning, J. Pfander, & A. Tyler, Hart and Wechsler's The Federal Courts and the Federal System 1348–1350 (8th ed. 2025) (noting "the availability of Ex parte Young-style litigation to challenge the legality of federal official action"). We see no reason why Cook may not pursue such a challenge here.

III

Having rejected the Government's view that the courts are to play no role in assessing the validity of a Governor's removal, we may decide this application on narrow grounds. No matter the precise definition of cause, or the scope of our review of any such determination, the President failed to afford Cook the procedural protections to which she was entitled by statute. Without such protections, she could not properly dispute the charges the President laid against her. We thus need not address Cook's constitutional due process argument, for the statute alone makes it unlikely that the Government will prevail on appeal as to the validity of the procedures used to fire Cook.[3]

A

Under our precedents, Cook was entitled to notice and some opportunity to respond prior to her termination. That

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[3] Perhaps dissatisfied with the responses offered by the Government (and JUSTICE THOMAS), JUSTICE ALITO would ignore the statute altogether. We should do so, he contends, because the lower courts did so, ruling in Cook's favor based solely on the Due Process Clause. See *post*, at 599–600 (dissenting opinion). But we "revie[w] judgments, not statements in opinions." *California* v. *Rooney*, 483 U. S. 307, 311 (1987) (*per curiam*) (internal quotation marks omitted). That is why the question before us is whether we would likely "reverse the *judgment* below," *Hollingsworth* v. *Perry*, 558 U. S. 183, 190 (2010) (*per curiam*) (emphasis added), not whether we would likely disagree with some of the *reasons* given by the lower courts. JUSTICE ALITO does not contend that we would have to reverse the judgment below *even if* Cook were to prevail as to the statute. Nor does he contend that the statute was somehow waived or forfeited; it was, after all, one of Cook's lead points below, see Brief for Appellee in No. 25–5326 (CADC), pp. 1, 11–13, and in this Court, see Brief in Opposition 1–2, 30–33; Reply Brief 5–8. What he says instead is that the question is "complicated and novel," *post*, at 599, a concern we of course share. When a party comes to us for interim relief, however, we "cannot hide in the tall grass." *Trump* v. *CASA, Inc.*, 606 U. S. 831, 874 (2025) (KAVANAUGH, J., concurring). Ultimately, "we must grant or deny." *Ibid.* That means resolving (at least tentatively) the legal issues properly before us—and not just the easy ones.

comes down to the words Congress chose, first in 1913, and then again in 1935. When Congress created the Federal Reserve, it gave Governors a set term in office and permitted removal only "for cause." At that time, and indeed afterward, that form of tenure—a term of years limited only by removal "for cause"—carried with it a settled interpretation at common law, one that we had expressly adopted just a decade before. "[T]he rule," we explained in 1901, is that "notice and hearing are essential" before an officer's removal "where the term of office is for a fixed period." *Reagan*, 182 U. S., at 425. We said the same in 1903. See *Shurtleff* v. *United States*, 189 U. S. 311, 314. *Reagan* and *Shurtleff* established the baseline against which Congress legislated, and we must construe its work accordingly. See *Williams* v. *Taylor*, 529 U. S. 420, 434 (2000).

Of course, that is not to say that a Federal Reserve Governor is entitled to an audience with the President or a full-blown judicial trial. But cf. A. Bamzai, Taft, Frankfurter, and the First Presidential For-Cause Removal, 52 U. Rich. L. Rev. 691 (2018) (describing the formal "committee of inquiry" convened by President Taft to assess whether he had cause to fire two members of the Board of General Appraisers).[4] Instead, all that is required is notice "to the officer of the charges made against him" and "an opportunity to be heard in his defense." F. Mechem, Law of Public Offices and Officers § 454, p. 287 (1890) (Mechem); see also 2 J. Dillon, Commentaries on the Law of Municipal Corporations §§ 473, 477, pp. 792, 798–802 (5th ed. 1911) (similarly emphasizing the necessity of a particular "formulated charge against the officer" and "an opportunity given to the party of making defence"). We see no reason why that opportunity "may not be had on written materials only," with no oral presentation. H. Friendly, "Some Kind of Hearing," 123 U. Pa. L. Rev.

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[4] This is a prime example of the view that Taft was our "most judicial president," as he was our most "presidential chief justice." J. Rosen, William Howard Taft 137 (2018).

1267, 1270 (1975). All that is required is "the right to support his allegations by argument however brief, and, if need be, by proof, however informal," before a final decision is made. *Londoner* v. *City and County of Denver*, 210 U. S. 373, 386 (1908).

The Government (joined by JUSTICE THOMAS) resists even this minimal process. It contends that we may not "read atextual requirements into statutes" and instead must focus only on "the plain language." Supp. Brief for Applicant 7 (internal quotation marks omitted). It is hardly atextual, however, to read text in context, or to examine how this Court interpreted such language at the time of the statute's enactment. If anything, it would be atextual to do otherwise.

Indeed, even the Government concedes that Congress, at least sometimes, should be taken to have implicitly incorporated these procedural requirements. The Government acknowledges, for instance, that a statute limiting removal to "specified causes"—like inefficiency or malfeasance—would require pretermination "notice and a hearing," because "this Court expressly recognized" as much in "both *Shurtleff* and *Reagan*." Tr. of Oral Arg. 30; see also *id.*, at 58 (reiterating the point). But *Shurtleff* and *Reagan* said the same about statutes, like the one at issue here, that promise officeholders a term of years—indeed, they said so in the exact same sentence. See *Shurtleff*, 189 U. S., at 314 ("[W]here causes of removal are specified by Constitution or statute, *as also where the term of office is for a fixed period*, notice and hearing are essential." (quoting *Reagan*, 182 U. S., at 425; emphasis added)). The Government's concession all but gives up its case.

That disposes, too, of the Government's related argument that Congress "knows how to impose notice-and-hearing requirements"—that is, "expressly"—and did not do so here. Supp. Brief for Applicant 7–8; see also *post*, at 585–587, and n. 4 (THOMAS, J., dissenting) (cataloging examples of such

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laws). Again, what is true for a statute with "specified causes" is true for this statute, too—in both instances, "notice and hearing are essential." *Reagan*, 182 U. S., at 425; *Shurtleff*, 189 U. S., at 314. And in any case, as we have said many times before, Congress not infrequently legislates in a "hyper-vigilant way, to remove any doubt as to things not particularly doubtful in the first instance." *Cyan, Inc.* v. *Beaver County Employees Retirement Fund*, 583 U. S. 416, 435 (2018) (internal quotation marks and alteration omitted). That Congress acted "out of an abundance of caution" in other statutes (most enacted decades after the one at issue here) hardly permits us to ignore the default rule our precedent had already made clear. *Fort Stewart Schools* v. *FLRA*, 495 U. S. 641, 646 (1990).

Perhaps recognizing the Government's bind, JUSTICE THOMAS would simply discard the rule announced in *Reagan* and *Shurtleff* as "a single line of dicta." *Post*, at 583. A single line, yes; dicta, no. *Reagan* and *Shurtleff* could hardly have been clearer about "the rule" they applied—that (to repeat once more) "notice and hearing are essential" if "the term of office is for a fixed period." *Reagan*, 182 U. S., at 425; *Shurtleff*, 189 U. S., at 314. Thus (as JUSTICE THOMAS emphasizes) the officers in *Reagan* and *Shurtleff* ultimately lost, because neither one enjoyed a fixed tenure. *Reagan*, 182 U. S., at 426; *Shurtleff*, 189 U. S., at 316. That does not make the rule "dicta."

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Even so, JUSTICE THOMAS insists, we cannot presume that Congress intended to incorporate *Reagan* and *Shurtleff*'s rule in the absence of some broader "judicial consensus." *Post*, at 582. We are not sure what more JUSTICE THOMAS wants. It is true, of course, that we have required "broad and unquestioned" "consensus" in *the Courts of Appeals* before presuming that Congress intended to incorporate into new legislation *the lower courts'* interpretation of a particular word or phrase. *Jama* v. *Immigration and Customs Enforcement*, 543 U. S. 335, 349 (2005). (The one case cited

by JUSTICE THOMAS on this point, *Learning Resources, Inc.* v. *Trump*, 607 U. S. 229 (2026), stands for just that proposition. See *id.*, at 252–253.) We have never said the same, however, about *our own cases*, of which Congress presumptively is aware. See, *e. g.*, *Ysleta del Sur Pueblo* v. *Texas*, 596 U. S. 685, 700–701 (2022) (finding that Congress implicitly relied upon an interpretation offered in just one of our prior opinions). Indeed, as a matter of vertical *stare decisis*, the lower courts have no choice but to follow our lead. When we define a term or establish a background rule, we need not repeat ourselves—once is enough.[5]

With no support in *Reagan* and *Shurtleff*, JUSTICE THOMAS goes for broke. Once again far outflanking the Government, which "does not contest the constitutionality of the" statute, Application 2, n. 1, JUSTICE THOMAS declares the statute "unconstitutional," an infringement on the Presi-

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[5] JUSTICE THOMAS acknowledges that our rule applies only to officers with a term of years who are *not* removable at will. See *post*, at 580–581. He notes that "hundreds" of federal officers with a term of years do *not* fall under this rule, because they *are* removable at will. *Post*, at 583. So far, so good. JUSTICE THOMAS errs, however, in suggesting that we have "rephrase[d]" *Reagan* and *Shurtleff* to arbitrarily exclude such officers, because (he says) they have "fixed terms" too. *Post*, at 583–584. But without some form of protection from removal—whether "for cause," "during good behavior," or something else entirely—an officer's "term" is not "for a fixed period" at all. *Reagan*, 182 U. S., at 425; *Shurtleff*, 189 U. S., at 314. He may be fired at *any* time for *any* reason. The "expiration" date set by statute (whether one, two, or more years) merely serves as a ceiling on his time in office, not a floor. *Parsons* v. *United States*, 167 U. S. 324, 338–339 (1897). *Reagan* and *Shurtleff* made just this distinction, see *Reagan*, 182 U. S., at 425; *Shurtleff*, 189 U. S., at 317–318, as did the common law, see M. Throop, Law Relating to Public Officers § 364, pp. 359–360 (1892) ("settled law" that notice and hearing required for officers "appointed for a fixed term, and removable only for cause," but not those removable "at pleasure"). Contra, *post*, at 578, 581 (THOMAS, J., dissenting) (contending that no "eminent common-law authorities" support our interpretation, while citing Throop for a different point).

dent's power to "remove his subordinates at will," *post*, at 578–588.

We disagree, as did "the founders of our Government and framers of our Constitution" when they "were actively participating in public affairs." *Myers* v. *United States*, 272 U. S. 52, 175 (1926). They knew from experience (and Hamilton reminded them) of the calamities that could arise from even the "suspicion" of political manipulation of monetary policy. Report on a National Bank 331. So when they established the First Bank of the United States, they guaranteed its independence from Presidential control. Their successors did the same for the Second Bank. That enabled both banks to serve as the "great regulating wheel" of the early American financial system. Lomazoff 53; see also *id.*, at 51–68, 142–146 (discussing the banks' role as a "watchdog over state banks and the economy"). The Federal Reserve follows in this lineage. See *supra*, at 534–539. Contra, *post*, at 566–570, 589–590 (THOMAS, J., dissenting) (contending that the First and Second Banks, unlike the Federal Reserve, served no regulatory function).

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It is true, of course, that this tradition has not stood still; as JUSTICE THOMAS notes, the Federal Reserve is more powerful than its predecessors, managing a vastly more complex economy in a vastly more complex world. See *post*, at 590.[6] We see no reason, however, why our central bank ought to be "trapped in amber" any more than any other aspect of our constitutional scheme. *United States* v. *Rahimi*, 602 U. S. 680, 691 (2024); see also *NLRB* v. *Noel Canning*, 573 U. S. 513, 524 (2014); *id.*, at 572–573 (Scalia, J., concurring in judgment). What matters is that the Federal Reserve remains "consistent with the principles that underpin" the

[6] In upholding the constitutionality of the Federal Reserve as currently structured and with its existing enforcement authorities, we do not suggest that Congress could assign the Federal Reserve additional regulatory powers that are attenuated from monetary policy.

First and Second Banks—namely, that monetary policy should not be subject to political interference. *Rahimi*, 602 U. S., at 692. In our view, the Federal Reserve maintains the "balance struck by the founding generation" under "modern circumstances." *Ibid.* We thus look to history not as an end in itself, but (as we often do) to give "essential content to undefined provisions in the frame of our government." *Youngstown Sheet & Tube Co.* v. *Sawyer*, 343 U. S. 579, 610 (1952) (Frankfurter, J., concurring).[7]

JUSTICE BARRETT objects that we discuss this issue at all, even if only in response to JUSTICE THOMAS. See *post*, at 601 (dissenting opinion); see also *post*, at 597–599 (ALITO, J., dissenting) (similarly contending that we should not issue a "comprehensive opinion at this juncture"). How much to say on our interim docket—and how much to say in response to a dissent—is not reducible to any mechanical formula; it is ultimately a matter of prudence, upon which reasonable minds can (and often do) disagree. See *Mirabelli* v. *Bonta*,

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[7] In the absence of *actual* unconstitutionality, JUSTICE THOMAS appeals to the canon of constitutional *avoidance*. See *post*, at 589. That move fails too. For one, the canon applies only in cases of "ambiguit[y]," where "text, context, and structure" leave us with two plausible interpretations of a statute. *Bondi* v. *VanDerStok*, 604 U. S. 458, 484 (2025) (internal quotation marks omitted). Here, however, we see no ambiguity. For another, as JUSTICE THOMAS has ably explained elsewhere, "the force of constitutional-avoidance principles is inherently limited where, as here, the choice of interpretations is tangential to the constitutional questions at stake." *United States ex rel. Polansky* v. *Executive Health Resources, Inc.*, 599 U. S. 419, 452, n. 3 (2023) (dissenting opinion). All agree that the Federal Reserve Act limits the President's power—the only question is *how much*. See Application 3–4 (acknowledging that the "'for cause' provision rules out removal for no reason at all, or for policy disagreement"); *post*, at 578 (THOMAS, J., dissenting) (adopting the Government's view). But if *any* limitation on the President's power to remove Governors "is constitutionally problematic," as JUSTICE THOMAS contends, then his interpretation "does not cure the problem" at all. *Polansky*, 599 U. S., at 452, n. 3 (opinion of THOMAS, J.). Either way, the constitutional question remains.

607 U. S. 492, 501 (2026) (BARRETT, J., concurring) ("Interim applications routinely require the Court to balance the lock-in risk of saying too much against the transparency cost of saying too little"); compare *Trump* v. *Illinois*, 607 U. S. —— (2025), with *id.*, at —— (KAVANAUGH, J., concurring in judgment), and *id.*, at —— (GORSUCH, J., dissenting). In this extraordinary case, we have had the benefit of not only *amici* and oral argument but months of internal consultation and deliberation. We see no reason to leave the public in limbo, or to sow doubt as to the status of one of our Nation's (and the world's) most important financial institutions. Although we appreciate that others may see matters differently, we would not so quickly unsettle this "special arrangement sanctioned by history." *Consumer Financial Protection Bureau* v. *Community Financial Services Assn. of America, Ltd.*, 601 U. S. 416, 467, n. 16 (2024) (ALITO, J., dissenting).

B

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As a last resort, the Government halfheartedly contends that Cook in fact received due process after all. In its view, the President gave Cook notice and an opportunity to be heard when he first posted about the matter on social media. That is despite the fact that the President's post did not suggest that a response from Cook would be appropriate, nor did it even provide a clear account of the charge made against her. It instead read simply "Cook must resign, now!!!" and linked to a news article about Pulte's letter. ECF Doc. 1, p. 14.

That will not do. At minimum, Cook was entitled to some explanation of the evidence at issue, some avenue for a response, and a deadline by which a response would be due. Cf. *Mullane* v. *Central Hanover Bank & Trust Co.*, 339 U. S. 306, 314–315 (1950). Because Cook did not receive such process, her removal was "erroneous and void" from the start, M. Throop, Law Relating to Public Officers § 364, p. 360 (1892), a principle recognized succinctly by Lord Coke as

early as 1615, see *Bagg's Case*, 11 Co. Rep., at 93b, 77 Eng. Rep., at 1272 ("A removal, without hearing the party removed, is bad.").

Of course, that is not to say that a response from Cook necessarily would have changed the President's mind. But as the Government rightly acknowledges, "the right to a hearing does not depend on demonstration of certain success." Application 18–19 (internal quotation marks omitted). It at least remains an open question what precisely happened here, and indeed whether Cook committed "gross negligence," let alone "deceitful and potentially criminal conduct," as the President's letter alleges. ECF Doc. 1–4, p. 2. Those are factual issues that we cannot determine in the first instance, and certainly not on the sparse record here (which does not even include the mortgage documents at issue nor any other evidence that the Government or Cook may consider relevant). Only after Cook has had the opportunity to respond to the charges made against her "by argument however brief, and, if need be, by proof, however informal," may a final decision be made. *Londoner*, 210 U. S., at 386. And only then can the courts assess the validity and sufficiency of such charges.[8]

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[8] JUSTICE BARRETT suggests that the injunction in fact goes far beyond process, forbidding the President from removing Cook "for her alleged mortgage fraud" no matter what. *Post*, at 604. Neither party agrees, and neither do we. See Application 10 (explaining that the Court of Appeals "relied solely on" Cook's "procedural claim," holding only that she is entitled "to notice and opportunity for a hearing before her removal"); Brief in Opposition 8–9. Like the parties, we read the injunction to forbid the implementation of "the President's letter of August 25" in which he purported to fire Cook—but not to forbid the President from trying again, if he chooses to do so. App. to Application 23a. At that point, Cook may seek judicial review under the framework described in this opinion, without the "broad" prohibition on removal "for mortgage fraud" that JUSTICE BARRETT fears, *post*, at 604. (Indeed, even if the injunction *were* overbroad, that still would not warrant JUSTICE BARRETT's proposed course of action—granting the Government's application *in full*, and thus removing Cook from office immediately, as opposed to merely clarifying the in-

* * *

As the Government concedes, Congress limited the President's power to remove Governors for good reason—"[t]o preserve the independence of the Federal Reserve" and to continue the "long tradition" of "monetary policy . . . exercised independent of . . . executive influence." Tr. of Oral Arg. 48 (statement of the Solicitor General).

Any change in that scheme must come from Congress, not the courts. That is why we cannot accept the Government's contentions in this case. To do so would allow the President to remove a member of the Federal Reserve at any time, for any reason, without any notice before, and without any judicial check after. That would turn for-cause protection into little more than at-will employment.

To be clear, the ultimate question of whether the President can remove Cook for cause will depend in part on the underlying facts. In this opinion, we have not addressed the facts, as they have yet to be found or analyzed under the relevant legal standards. Rather, we have simply addressed the parties' arguments about the appropriate legal standards under which the facts must be evaluated.

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The application for a stay is denied.

It is so ordered.

JUSTICE KAVANAUGH, concurring.

I join the Court's opinion in full and write separately to emphasize two points.

First, today's interim ruling does not decide whether the President may lawfully remove Governor Cook for cause. The ultimate decision about whether the President may remove Governor Cook for cause will largely depend on the facts regarding the Governor's actions. And those facts have yet to be determined. The Court's opinion today sim-

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junction's limited scope. Cf. *Madsen* v. *Women's Health Center, Inc.*, 512 U. S. 753, 765 (1994) (relief must be "no broader than necessary" to prevent irreparable harm to applicant).)